

Court No. - 3

Case :- WRIT - C No. - 19139 of 2022

Petitioner :- Abdul Kayyum

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Anubhav Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Sunil Kumar Srivastava, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Anubhav Singh, learned counsel for the respondent No.3 to 5.

This writ petition has been filed praying for the following relief:

"(i) to issue writ order or direction in the nature of writ of certiorari to quashed the notice dated 29.05.2022 issued by respondent no.5.

(ii) to issue writ order or direction in the nature of writ of mandamus respondent to directing to respondent no.2 to supply the electricity connection of the petitioner bearing Connection no.085251 (consumer account no.34145237) in house no.130/252 Bagahi, Kidwai Nagar, Kanpur Nagar.

(iii) to issue writ order or direction in the nature of writ of mandamus respondent to directing to respondent no.2 to pass the appropriate order over the petitioner application dated 20.06.2022 (Ann.w.p. no.5)."

learned counsel for the respondent No.3 to 5/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.5, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 13.7.2022

NLY